

SENATE BILL 1601

By Haile

AN ACT to amend Tennessee Code Annotated, Title 66,
relative to residential landlord registries.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 66, Chapter 28, Part 1, is amended by adding the following as a new section:

(a) As used in this section, "real estate investment trust (REIT)" means an entity that has an election in effect under § 856(c)(1) of the Internal Revenue Code (26 U.S.C. § 856(c)(1)).

(b)

(1) Upon the adoption of a resolution by a two-thirds (2/3) vote of the governing body of the municipality, a municipality may require a real estate investment trust that owns, operates, or finances ten (10) or more dwelling units within the municipality's corporate boundaries to furnish the following information with the agency or department of local government that is responsible for enforcing building codes in the municipality:

(A) The REIT's or the REIT's agent's name, telephone number, and physical address, which does not include a post office box; and

(B) The street address and unit number, as appropriate, for each dwelling unit that the REIT owns, leases, or subleases or has the right to own, lease, or sublease.

(2) The information required under subdivision (b)(1) must be furnished on a form provided by the agency or department responsible for enforcing

building codes. The agency or department shall not collect from a REIT filing the form any fee.

(3) If any information required under subdivision (b)(1) or the ownership of the dwelling units change, then the REIT that transferred the property by sale or otherwise, or the REIT's agent, shall notify the agency or department of the change within thirty (30) days of the change.

(c)

(1) The agency or department of local government that is responsible for enforcing building codes in the municipality where the dwelling units are located shall assess a fine of fifty dollars (\$50.00) per week against a REIT that fails to register or that fails to send notification of a change of information or ownership as required by subsection (b).

(2) Prior to the assessment of the fine, the REIT must be given an opportunity to appear and be heard at a hearing to be held concerning the REIT's failure to register or failure to send notification of a change of information or ownership. A written notice of the date, time, and place of the hearing must be mailed to the REIT or REIT's agent at least fifteen (15) days prior to the date of the scheduled hearing.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.